

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

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JONATHAN ACEVEDO and CHRISTIAN ACEVEDO,

SUMMONS

Jury Trial Demanded

Plaintiff,

Plaintiff designates Bronx County
as the place of trial.

-against-

THE CITY OF NEW YORK, P.O. FELIX LOMBARTO, Shield No.
08672, Individually and in his Official Capacity, P.O. RUBIN SANTOS,
Shield No. 8406, Individually and in his Official Capacity and P.O.'s
"JOHN DOE" #1-5, Individually and in their Official Capacity the name
John Doe being fictitious, as the true names are presently unknown),

The basis of venue is:
Plaintiff's Residence

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 7, 2013

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

MICHAEL A. CARDOZO
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW
YORK
100 Church Street
New York, New York 10007

P.O. FELIX LOMBARTO
Shield No. 08672
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

P.O. RUBIN SANTOS
Shield No. 8406
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JONATHAN ACEVEDO and CHRISTIAN ACEVEDO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. FELIX LOMBARTO,
Shield No. 08672, Individually and in his Official
Capacity, P.O. RUBIN SANTOS, Shield No. 8406,
Individually and in his Official Capacity and P.O.'s
"JOHN DOE" #1-5, Individually and in their Official
Capacity the name John Doe being fictitious, as the true
names are presently unknown),

Defendants.

-----X

Plaintiffs JONATHAN ACEVEDO and CHRISTIAN ACEVEDO, by their attorneys,
COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiffs JONATHAN ACEVEDO and CHRISTIAN ACEVEDO are Hispanic males and have been at all relevant times residents of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. Defendant, THE CITY OF NEW YORK, maintains the New York City Department of Corrections, duly authorized public authorities and/or corrections departments, authorized to perform all functions of a corrections department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

5. That at all times hereinafter mentioned, the individually named defendants P.O. Felix Lombarto, P.O. Rubin Santos and P.O.s "JOHN DOE" #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

9. On or about May 5, 2012 in the County of Bronx, City, and State of New York, plaintiffs were in the vicinity of 2418 University Avenue, Bronx, New York.

10. Plaintiffs were sitting in front of their apartment building waiting for a friend to pick them up when defendant officers accosted them.

11. Plaintiffs showed the officers identification which proved they lived at 2418 University Avenue and told the officers that they were waiting to be picked up.

12. The defendant officers then walked over to a nearby garbage can, picked up an empty beer can and told plaintiff CHRISTIAN ACEVEDO that he was being arrested for having an open container.

13. Defendant officers placed plaintiff CHRISTIAN ACEVEDO under arrest with his arms tightly behind his back and slammed him into the hood of a parked vehicle several times.

14. Defendant officers punched plaintiff CHRISTIAN ACEVEDO in the face, causing a black eye and also tazerred him.

15. Defendant officers place plaintiff JONATHAN ACEVEDO under arrest with his arms tightly behind his back.

16. At no time on May 5, 2012, did defendants possess probable cause to arrest plaintiffs.

17. At no time on May 5, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiffs.

18. Thereafter, plaintiffs were transported to a nearby police precinct.

19. Plaintiff CHRISTIAN ACEVEDO was charged with resisting arrest and obstruction of governmental administration.

20. At no time on May 5, 2012, did plaintiff CHRISTIAN ACEVEDO resist arrest, obstruct governmental administration or behave unlawfully in any way.

21. Plaintiff JONATHAN ACEVEDO was charged with having an open container.

22. At no time on May 5, 2012, did plaintiff JONATHAN ACEVEDO have an open container or behave unlawfully in any way.

23. In connection with plaintiffs' arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the District Attorney's Office.

24. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiffs' arrest.

25. Specifically, defendants falsely alleged that plaintiff CHRISTIAN ACEVEDO was swinging his arms and screaming.

26. Defendants also falsely alleged that plaintiff JONATHAN ACEVEDO had an open container.

27. As a result of his unlawful arrest, plaintiff CHRISTIAN ACEVEDO spent approximately twenty-nine (29) hours in police custody before the Bronx District Attorney's Office Declined to prosecute charges against him.

28. As a result of his unlawful arrest, plaintiff JONATHAN ACEVEDO spent approximately six (6) hours in police custody and had to make approximately one (1) court appearances before all charges against him were terminated in his favor on July 18, 2012.

29. As a result of the foregoing, plaintiffs sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

30. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “29” with the same force and effect as if fully set forth herein.

31. On or about May 22, 2012 and within ninety (90) days after the claim herein accrued, the plaintiff CHRISTIAN ACEVEDO duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

32. On or about June 7, 2012 and within ninety (90) days after the claim herein accrued, the plaintiff JONATHAN ACEVEDO duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

33. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

34. Defendant THE CITY OF NEW YORK demanded hearings pursuant to General Municipal Law § 50-h and a hearing took place for plaintiff CHRISTIAN ACEVEDO on July 30, 2012

35. A hearing took place for plaintiff JONATHAN ACEVEDO on October 4, 2012.

36. This action was commenced on March 18, 2013, within one (1) year and ninety (90) days after the cause of action herein accrued.

37. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

38. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF
FALSE ARREST

39. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as is fully set forth herein.

40. Defendant police officers arrested plaintiffs in the absence of probable cause and without a warrant.

41. As a result of the aforesaid conduct by defendants, plaintiffs were subjected to illegal, improper and false arrests by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiffs’ rights.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION AGAINST PLAINTIFF JONATHAN ACEVEDO

42. Plaintiff JONATHAN ACEVEDO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “41” with the same force and effect as if fully set forth herein.

43. Defendants misrepresented and falsified evidence before the District Attorney.

44. Defendants did not make a complete and full statement of facts to the District Attorney.

45. Defendants withheld exculpatory evidence from the District Attorney.

46. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff JONATHAN ACEVEDO.

47. Defendants lacked probable cause to initiate criminal proceedings against plaintiff JONATHAN ACEVEDO.

48. Defendants acted with malice in initiating criminal proceedings against plaintiff JONATHAN ACEVEDO.

49. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff JONATHAN ACEVEDO.

50. Defendants lacked probable cause to continue criminal proceedings against plaintiff JONATHAN ACEVEDO.

51. Defendants acted with malice in continuing criminal proceedings against plaintiff JONATHAN ACEVEDO.

52. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

53. Notwithstanding the perjurious and fraudulent conduct of defendants, upon information and belief, all charges against plaintiff JONATHAN ACEVEDO were terminated in his favor on or about July 18, 2012.

54. As a result of the foregoing, plaintiff JONATHAN ACEVEDO'S liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF **ASSAULT**

55. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "54" with the same force and effect as if fully set forth herein.

56. Defendants' aforementioned actions placed plaintiffs in apprehension of imminent harmful and offensive bodily contact.

57. As a result of defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FOURTH CLAIM FOR RELIEF
BATTERY

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “57” with the same force and effect as if fully set forth herein.

59. Defendant police officers touched plaintiffs in a harmful and offensive manner.

60. Defendant police officers did so without privilege or consent from plaintiffs.

61. As a result of defendants’ conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF
FALSE IMPRISONMENT

62. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “61” with the same force and effect as if fully set forth herein.

63. As a result of the foregoing, plaintiffs were falsely imprisoned, their liberty was restricted for an extended period of time, they were put in fear for their safety, they were humiliated and they were subjected to handcuffing, and other physical restraints.

64. Plaintiffs were conscious of said confinement and did not consent to same.

65. The confinement of plaintiffs was without probable cause and was not otherwise privileged.

66. As a result of the aforementioned conduct, plaintiffs have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SIXTH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

67. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “66” with the same force and effect as if fully set forth herein.

68. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

69. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

70. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

71. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiffs.

72. As a result of the aforementioned conduct, plaintiffs suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

73. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

75. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

76. Due to the negligence of the defendants as set forth above, plaintiffs suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

77. As a result of the foregoing, plaintiffs are entitled to compensatory damages and are further entitled to punitive damages against the individual defendants.

FEDERAL CLAIMS

EIGHTH CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

78. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “77” with the same force and effect as if fully set forth herein.

79. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

80. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

81. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

82. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

83. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**NINTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST PLAINTIFF
CHRISTIAN ACEVEDO**

84. Plaintiff CHRISTIAN ACEVEDO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “83” with the same force and effect as if fully set forth herein.

85. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff CHRISTIAN ACEVEDO.

86. As a result of the foregoing, plaintiff CHRISTIAN ACEVEDO sustained, inter alia, severe bodily injuries including, but not limited to, bruises, black eyes and pain as a result of being tazered.

**SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983**

87. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “88” with the same force and effect as if fully set forth herein.

88. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

89. As a result of the foregoing, plaintiffs’ liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**NINTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983 AGAINST PLAINTIFF
JONATHAN ACEVEDO**

90. Plaintiff JONATHAN ACEVEDO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “89” with the same force and effect as if fully set forth herein.

91. Defendants misrepresented and falsified evidence before the District Attorney.

92. Defendants did not make a complete and full statement of facts to the District Attorney.

93. Defendants withheld exculpatory evidence from the District Attorney.

94. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff JONATHAN ACEVEDO.

95. Defendants lacked probable cause to initiate criminal proceedings against plaintiff JONATHAN ACEVEDO.

96. Defendants acted with malice in initiating criminal proceedings against plaintiff JONATHAN ACEVEDO.

97. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff JONATHAN ACEVEDO.

98. Defendants lacked probable cause to continue criminal proceedings against plaintiff JONATHAN ACEVEDO.

99. Defendants acted with malice in continuing criminal proceedings against plaintiff JONATHAN ACEVEDO.

100. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

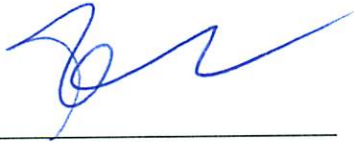
101. Notwithstanding the perjurious and fraudulent conduct of defendants, all charges against plaintiff JONATHAN ACEVEDO were terminated in his favor on or about July 18, 2012.

102. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 18, 2013


BY: _____
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115
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gcohen@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiffs JONATHAN ACEVEDO and CHRISTIAN ACEVEDO in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 April 8, 2013



Gerald Cohen

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JONATHAN ACEVEDO and CHRISTIAN ACEVEDO,

Plaintiff,

-against-

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08672, Individually and in his Official Capacity, P.O. RUBIN SANTOS,
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"JOHN DOE" #1-5, Individually and in their Official Capacity the name
John Doe being fictitious, as the true names are presently unknown),

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY

SUITE 1800

NEW YORK, NEW YORK 10279

(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at

on

, at

M.

Dated:

ATTORNEY FOR

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY, SUITE 1800

NEW YORK, N.Y. 10279

(212) 374-9115